

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #12	CCRB Case #: 201507350	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/23/2015 3:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/23/2017	Precinct: 69		
Date/Time CV Reported Sun, 08/23/2015 1:10 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/31/2015 11:11 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Zhenxian Zhou	05642	943987	PSA 1
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Jody Thompson	05905	953480	PSA 1
2. POM Ernie Moran	13221	956950	PSA 1
3. POM Iselaire Edmond	16533	945685	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A.SGT Zhenxian Zhou	Discourtesy: Sgt. Zhenxian Zhou spoke discourteously to § 87(2)(b)	§ 87(2)(b)
B. Officers	Discourtesy: Officers spoke discourteously to individuals	§ 87(2)(b)
C.SGT Zhenxian Zhou	Abuse: Sgt. Zhenxian Zhou threatened § 87(2)(b) with the use of force.	§ 87(2)(b)

Case Summary

On August 23, 2015, Sgt. Zhenxian Zhou and other officers from PSA1 responded to a call of Criminal Trespassing at the Breukelen House NYCHA complex, located at § 87(2)(b) in Brooklyn, NY, regarding multiple individuals present on the roof of the apartment building, including § 87(2)(b) and § 87(2)(b). While interacting with § 87(2)(b) Sgt. Zhou allegedly spoke discourteously to him (Allegation A). While leaving the roof, § 87(2)(b) observed two male police officers banging on an apartment door saying, “Open the fucking door” (Allegation B). While placing § 87(2)(b) in to the police vehicle, Sgt. Zhou threatened § 87(2)(b) with the use of a Taser (Allegation C). § 87(2)(b) and four other individuals were arrested in regards.

This case has no video evidence.

This was reassigned from Investigator Carayannis to Investigator Yesselman on November 23, 2015. This case was closed after 90 days due to difficulty identifying and interviewing victims.

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to the arrests without Desk Appearance Tickets.
- As of December 9, 2015, an inquiry sent to the NYC’s Comptroller’s Office regarding a possible Notice of Claim related to this incident is still pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by and/or involving § 87(2)(b) and § 87(2)(b) (Board Review 05).
- Sgt. Zhou has been a member of the service for eight years and this is the first CCRB complaint filed against him.

Potential Issues

- § 87(2)(b) a non-complaining victim, was unavailable to participate in this investigation. § 87(2)(b) and § 87(2)(b) whom the investigation determined were witnesses to this incident, were uncooperative in this investigation (See IA’s). Therefore, verified statements were unable to be obtained by § 87(2)(b) and § 87(2)(b).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) alleged that officers were at an apartment door where a party was ongoing. The only description she was able to provide of the officers is that they were males. The officers allegedly stated, “Open the fucking door” (Board Review 08). § 87(2)(b) later heard that no one within the apartment opened the door. None of the other civilian witnesses cooperated with the investigation. § 87(2)(g)

Allegations not pleaded

- **Discourtesy:** § 87(2)(b) stated that Sgt. Zhou spoke discourteously to § 87(2)(b). However, during his telephone statement, § 87(2)(b) did not allege this (Board Review 07). § 87(2)(g)
- **Force:** § 87(2)(b) alleged that officers threw an individual on the ground and put a knee on their head (Board Review 11). § 87(2)(b) was uncooperative with the investigation and neither § 87(2)(b) (Board Review 08) nor § 87(2)(b) (Board Review 07) made this allegation, § 87(2)(g)
- **Abuse of Authority:** § 87(2)(b) alleged that officers knocked a female’s phone out of her hand, preventing her from recording the incident (Board Review 11). § 87(2)(b) the only female present, stated that while she was in handcuffs, she attempted to record the incident on her cell phone and an officer took it out of her hand and told her that she could not do that, as she was under arrest (Board Review 08). § 87(2)(g)

Allegation A - Discourtesy: Sgt. Zhenxian Zhou spoke discourteously to § 87(2)(b)

During her telephone statement to the CCRB, § 87(2)(b) did not allege the use of any discourteous language by an officer while on the roof of the complex, but did allege that Sgt. Zhou stated, “Shut the fuck up,” while placing § 87(2)(b) in to the police van (Board Review 10). During her CCRB interview, § 87(2)(b) alleged that while on the roof of the complex, § 87(2)(b) and § 87(2)(b) asked the officers why they were being arrested, and that Sgt. Zhou replied, “Shut the fuck up. You know what you fucking did,” and “I don’t fucking care” (Board Review 08). § 87(2)(b) was not available to provide a statement to the CCRB. During his telephone statement, § 87(2)(b) did not allege that any discourteous language was used (Board Review 07), and he was uncooperative with the investigation.

Sgt. Zhou confirmed that he responded to this incident and interacted with § 87(2)(b). Sgt. Zhou testified that he did not use any discourteous language, nor did any other officer (Board Review 09).

§ 87(2)(g)

Allegation B - Discourtesy: Officers spoke discourteously to individuals.

§ 87(2)(g)

Allegation C - Abuse of Authority: Sgt. Zhenxian Zhou threatened § 87(2)(b) with the use of force.

It is undisputed that § 87(2)(b) was verbally and physically resistant to being placed in to the police van and that § 87(2)(b) cursed at the officers and kicked the door of the police vehicle when he was placed inside of it, along with § 87(2)(b) and another male individual.

§ 87(2)(b) believed that a Taser was used against § 87(2)(b) because she observed Sgt. Zhou point a “black box” at § 87(2)(b) and she heard an electrical buzz (Board Review 08). She also heard Sgt. Zhou say he would use the Taser again if § 87(2)(b) did not comply. However, she did not see any barbs come out of the Taser, she did not see Sgt. Zhou touch § 87(2)(b) with the Taser, and EMS were not called to remove anything from § 87(2)(b). Sgt. Zhou acknowledged that he pointed a Taser at § 87(2)(b) but he did not use it (Board Review 09). § 87(2)(g)

According to Patrol Guide Procedure 212-117, CEDs, also known as Tasers, should be used only against persons who are actively physically resisting, exhibiting signs of aggression, or to prevent individuals from physically injuring themselves or other persons (Board Review 06).

§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date